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Blue Ember's Posttrial Opposition

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United States District Court for the Western District of North Carolina Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc. Civil Action No. SYN-WDNC-24-CV-0520

Blue Ember opposes both posttrial requests. Granite Heron’s mitigation theory cannot support Rule 50(b) judgment because neither Rule 50(a) motion presented it. The October 10 filing sought causation judgment only, disclaimed failure to mitigate, and left the Cobalt Finch evidence for the jury. The October 14 renewal repeated that boundary immediately before submission.

Mitigation is an affirmative defense with a distinct burden, evidence set, and verdict question. It is not the same issue as whether the transport excursion initially caused rejection, replacement cost, and delay. Broad references to attributable damages cannot overcome the carrier’s express choice not to seek pre-verdict mitigation judgment.

The jury also had sufficient evidence to reject most of the proposed reduction. It heard that program qualification remained unfinished, the decision window was forty-eight hours, success was not guaranteed, and a failed accelerated transfer could consume money and personnel while leaving Aurora Quay necessary. The 300,000-dollar net finding should stand.

The October 10 motion was causation only

When Blue Ember rested, Granite Heron specified one ground: insufficient proof that the excursion caused the claimed loss. It challenged the bridge from logger curve to quality disposition, replacement expense, and development delay. It did not ask the Court to decide whether Blue Ember acted unreasonably after the injury.

The written motion says it does not seek judgment on failure to mitigate. It states that Cobalt Finch capability, qualification, decision risk, avoided loss, alternative cost, and any net deduction remain for the jury. The Court denied the causal request and allowed Granite Heron to present the rest of its evidence.

That express limitation served Rule 50's notice and cure purposes. Had Granite Heron moved on mitigation, Blue Ember could have asked to reopen, sought additional clarification from Calder, or addressed a claimed legal insufficiency before submission. The carrier instead treated the proof as a factual contest. It cannot convert that deliberate trial position into a postverdict judgment ground after receiving only a 300,000-dollar deduction.

The October 14 motion preserved the same issue

At the close of all evidence, Granite Heron again stated that it renewed causation only. Its filing said the Durham opportunity was not a ground for the motion, left reasonableness and net amount on the verdict form, and confirmed that it did not contend the evidence compelled a 1.5-million-dollar reduction.

The Court and parties relied on that statement when finalizing separate instructions for causation, gross damages, and mitigation. Blue Ember closed without needing to answer a motion that had not been made. The jury then performed the task Granite Heron expressly assigned to it.

Rule 50(b) renews rather than invents a pre-verdict request. A same-issue principle can tolerate variation in supporting argument when the subject and notice remain constant. It cannot make a causation-only motion preserve a distinct affirmative defense the movant expressly excluded. The new mitigation request therefore must be denied without reaching whether another jury could view the evidence differently.

Notice, burden, and the Seventh Amendment

Blue Ember bore the burden to prove breach, causation, and gross compensatory loss. Granite Heron bore the burden to establish unreasonable failure to reduce loss and the amount of a supported net deduction. The special verdict reflected those separate allocations. Treating the two subjects as interchangeable would obscure who had to prove what.

Pre-verdict specificity lets an opponent cure a perceived evidentiary gap and lets the Court decide whether to submit an issue. It also protects the jury's role by preventing judgment on a theory disclosed only after an adverse answer. Granite Heron's trial reservations cannot displace the specific language it chose.

The carrier's proposed 1.5-million-dollar deduction asks the Court to weigh feasibility and risk after the jury selected 300,000 dollars. Because the legal ground was not preserved, Rule 50 does not authorize that substitution. The Court can address the timely Rule 59 request under its different standard, but it should not use a new-trial motion to backfill the missing pre-verdict JMOL ground.

Evidence supports the mitigation answer

Cobalt Finch offered real capacity and possessed relevant general capability. Blue Ember did not deny those facts. But the facility had never produced BE-214, detailed equipment mapping and method allocation remained open, no sponsor audit had occurred, and commercial commitment carried staged cancellation exposure. Calder described feasibility with elevated schedule risk and supplied no success probability.

Blue Ember engaged rather than ignored the proposal. Technical, quality, operations, and finance staff asked focused questions. They considered the schedule advantage and preliminary cost before choosing an established March 3 path. A reasonable jury could find some avoidable delay yet reject Park's assumption that the accelerated course likely would preserve 1.8 million dollars of loss.

The net answer of 300,000 dollars fits that record. Jurors could assign a smaller gross benefit after accounting for readiness uncertainty and then subtract necessary alternative cost. They were not required to choose either expert's endpoint. The verdict form and instructions permitted a supported intermediate finding without revealing deliberative arithmetic beyond the final net amount.

Rule 59 does not require a retrial

The verdict is not against the clear weight merely because Park offered a larger number. Brooks explained why capacity did not equal completed qualification and why the contemporaneous record lacked a reliable probability for the full avoidance premise. Calder confirmed both genuine opportunity and genuine uncertainty. Solis described a documented decision under a short deadline.

The jury observed the witnesses and received a modular worksheet. Its gross findings matched traced categories; its mitigation answer fell between no deduction and Granite Heron’s full request. No false evidence, inconsistent answer, or hidden arithmetic compromise appears. The result reflects permissible weighing.

Granite Heron’s challenges to original-lot value, replacement classification, and forecast certainty were also presented during trial. The special verdict shows that jurors assessed them separately. Rule 59 does not allow the Court to substitute a preferred economic judgment simply because another reasonable factfinder might have credited more of the defense case.

Requested disposition and scope

The Court should deny Rule 50(b) for lack of a matching pre-verdict ground and deny Rule 59 because the verdict rests on substantial evidence. Judgment should remain 3.9 million dollars, reflecting the jury's 4.2-million-dollar gross finding and 300,000-dollar net mitigation deduction.

If the Court nevertheless orders a new trial, liability and causation must remain fixed. The verdict answered those questions distinctly, and the operational event does not depend on the later capacity choice. Any retrial should address gross damages and mitigation together only to the extent needed to compare caused delay with avoidable loss and prevent duplicate arithmetic.

Blue Ember preserves its objection to any new trial and does not concede that the financial issues require reconsideration. Its scope argument is conditional and does not request reopening of liability. The opposition relies on the motions and evidence that actually occurred; it does not invoke a different preservation premise or a fictional filing outside this docket.